

23STCV07005 23STCV07005

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Division: Civil Law and Motion
Department: 506
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Case Number: 23STCV07005 Hearing Date: July 2, 2026 Dept: 506

SUPERIOR
COURT OF THE STATE OF CALIFORNIA

FOR THE
COUNTY OF LOS ANGELES - CENTRAL DISTRICT

WFG NATIONAL TITLE INSURANCE COMPANY,

Plaintiff,

vs.

JONATHAN GRIGSBY,

Defendant.

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CASE NO.: 23STCV07005

[TENTATIVE] ORDER GRANTING MOTION FOR SUMMARY
JUDGMENT

Dept. 506

8:30 a.m.

July 2, 2026

On

March 30, 2023, Plaintiff WFG National Title Insurance Company filed this action
against Defendant Jonathan Grigsby, individually and as Trustee of the John Wesley
Grigsby, Jr. Revocable Living Trust.

On

October 29 and 30, 2025, Plaintiff filed a motion for summary judgment. Defendant did not timely file any opposition,
even when he was represented by counsel.

REQUEST
FOR JUDICIAL NOTICE

Defendant's
request for judicial notice is granted.

LEGAL
STANDARD

A

plaintiff moving for summary adjudication must satisfy the initial burden of proof by proving each element of a cause of action.

(Code Civ. Proc., § 437c, subd. (p)(1).)

That includes damages when damages are an element. (Paramount Petroleum Corp. v. Superior Court (2014) 227 Cal.App.4th 226, 241.) Then the burden shifts to the defendant to show that a triable issue of material fact exists as to the cause of action or a defense. (Code Civ. Proc., § 437c, subd. (p)(2).) To establish a triable issue of material fact, the party opposing the motion must produce “substantial responsive evidence.” (Sangster v. Paetkau (1998) 68 Cal.App.4th 151, 162-163.)

DISCUSSION

Plaintiff's

motion is based on Defendant's deemed admissions (“RFAs”) from the Court's January 9, 2025 order deeming the admissions admitted by Defendant.

Where

a party fails to timely respond to a request for admission, the propounding party may move for an order that the genuineness of any documents and the truth of any matters specified in the requests be deemed admitted. (Code Civ. Proc., § 2033.280, subd. (b).) “[A] deemed admitted order establishes, by judicial

fiat, that a nonresponding party has responded to the requests by admitting the truth of all matters contained therein.”

(Wilcox v. Birtwhistle (1999) 21 Cal.4th 973, 979.) “Any matter admitted in response to a request for admission is conclusively established against the party making the admission in the pending action.” (Code Civ. Proc.,

§ 2033.410, subd. (a).) “As a general rule

an admission is conclusive in the action as to the party making it. [Citations.]

Absent leave of court to amend or withdraw the admission, no contradictory evidence may be introduced.” (Murillo

v. Superior Court (2006) 143 Cal.App.4th 730, 736 (Murillo).) “‘Sometimes, the admissions obtained will even leave the party making them vulnerable to summary judgment.’ [Citations.]”

(St. Mary v. Superior Court (2014) 223 Cal.App.4th 762, 775.)

Plaintiff

alleges that Defendant had a Promissory Note secured by a Deed of Trust on the subject property, which he did not pay off during escrow for the sale of the property to Plaintiff's insured. (Complaint ¶¶ 6-15.) As a result, Plaintiff was required under the

title insurance policy to remove the title defect for its insured buyers by paying \$334,715.74 to the Note holder. (Complaint ¶¶ 16-17.)

Through the RFAs and other evidence, Plaintiff has established that Defendant was the owner of the property and was obligated under the Promissory Note. (UMF 5-13.) In October 2021, Defendant entered into a real estate purchase contract to sell the property to Plaintiff's insureds. (UMF 14-15.) Plaintiff provided title insurance to the buyers. (UMF 16, 19.) The escrow instructions Plaintiff received from Defendant and the insured buyers called for the subject loan to be paid off and the deed of trust to be released and reconveyed as part of the transaction. (UMF 18.) In September 2022, Plaintiff received a title claim from its insureds based on and arising from a Notice of Default and Notice of Trustee's Sale recorded against the property. (UMF 24.) Defendant had not paid off the loan during escrow. (UMF 27.) Plaintiff removed the title defect for its insureds (UMF 28-32.) Plaintiff demanded that Defendant reimburse the \$335,157.06, but Defendant has failed and refuses to do so. (UMF 33.)

Based on Defendant's admissions, Plaintiff has proven all elements of its claims.

Defendant did not file an opposition. Regardless, Defendant is not permitted to introduce evidence that conflicts with his admissions. (See Code Civ. Proc., § 2033.410, subd. (a); Murillo, supra, 143 Cal.App.4th at p. 736.)

Summary judgment is granted in favor of Plaintiff.

CONCLUSION

The motion for summary judgment is GRANTED.

Plaintiff is ordered to submit a proposed form of judgment within 10 days.

A

Non-Appearance Case Review re: Submission of Proposed Judgment is scheduled for August 5, 2026 at 9:00 a.m.

All
other future dates are vacated.

Moving
party to give notice.

Parties
who intend to submit on this tentative must send an email to the Court at indicating intention to submit. If all parties in the case submit on the tentative ruling, no appearances before the Court are required unless a companion hearing (for example, a Case Management Conference) is also on calendar.

Dated this 2nd day of July 2026

Hon. Thomas D. Long

Judge of the Superior
Court